FILINVEST Malls

PLEASE SIGN & RETURN TO LEASING DIVISION
FESTIVAL SUPERMALL

January 27, 2025

MR. ADRIAN P. DIMACALI
Director
MARY GRACE FOODS INC.
2891 Mahogany St. United Parañaque Subd. 2,
San Martin De Porres, Parañaque City

Dear Mr. Dimacali:

This has reference to your **MARY GRACE** at **Space No. UGF - K201.1, Festival Supermall**.

We would like to formalize the renewal of our contract under the following terms and conditions:

1.)	Tradename	: **MARY GRACE**
	Space No. / Location	: **UGF - K201.1**
	Floor Area (sqm.)	: **6.00 sqm.**
	Fixed Rent/mo.	: **P 35,680 / 5% / P 76,450**
	Advertising Fee Per Annum	: **P 10,000.00** - payable every November of each year.
	Aircon Charges	: **P 150.00/sqm./mo.**
	Common Area Maintenance Charges	: **P 160.00/sqm./mo.**
	Electric Meter &Power Charges	: **For Lessee's Account**
	Documentary Stamp Tax	: **P 1,837.00**
	Security Deposit	: **P 107,040.00**
	Construction Bond	: **N.A.**
	Lease Term	: **February 1, 2025 – January 31, 2026**
	Permitted Uses	: **Cakes & Pastries**

Except as provided above, all other provisions, terms, and conditions in the Award Notice not herein modified, revoked, and/or superseded, shall remain valid, binding, and in full force and effect.

2.) The aforesaid security deposit which is equivalent to **three (3) months** of fixed rent shall be forfeited in favor of the LESSOR should the LESSEE terminates the lease for whatever reason prior to the expiry date of the lease term. It shall be understood that the security deposit shall be refundable without interest only after the expiration of the term of this lease and after LESSEE has satisfactorily vacated and completely delivered the leased premises to the LESSOR, less whatever amounts LESSEE may owe LESSOR which may be applied against the security deposit.

3.) **INSURANCE:** LESSEE shall furnish LESSOR with copy of the insurance policy for the renewed term to our Operations Department. Failure to submit said policies within (15) days from receipt of this letter shall compel us to enroll your store for insurance coverage with costs charged to your account.

4.) **FILINVEST LAND, INC.** shall have the right to pre-terminate this contract should the LESSEE fail to settle his account equivalent to two (2) months rent.

In case the LESSEE pre-terminates the lease, or continues to occupy the Leased Premises after the expiration of the lease period, or abandons, subleases or assigns wholly or in part the Leased Premises in violation of this contract, or commits a substantial breach of this contract, including, but not limited to, non-payment of rent and other charges due thereunder, the LESSEE hereby

authorizes the LESSOR to do any or all of the following: (a) enter and / or break open the Leased Premises, (b) take immediate possession of the Leased Premises, (c) padlock the Leased Premises, (d) remove and warehouse the inventories, stock-in-trade, merchandise, goods and other movable property found in the Leased Premises, and sell the same at public auction or private sale to answer for any unpaid rent, damages or other monetary obligation of the LESSEE. It is understood herein that the LESSOR may undertake any or all of the foregoing actions without the necessity of resorting to court action, the LESSEE hereby waiving any cause of action, whether civil, criminal or administrative, it may have against the LESSOR.

5.) **FILINVEST LAND, INC.** shall not be responsible for any losses, theft and/or damage to the merchandise of the LESSEE. LESSEE is fully responsible for the security of his properties within the leased premises.

Kindly sign on the space provided below to signify your conformity and return two (2) copies to the address below on or before **February 15, 2025:**

Leasing Department
Admin C, Lower Ground Floor, Festival Supermall Inc.,
Filinvest Corporate City, Alabang, Muntinlupa City

Your failure to reply hereto or to return to us the signed copies within the said period shall lead us to assume that you have unconditionally accepted all the updated terms and conditions stipulated herein. Nonetheless, we reserve the right to alternatively and solely consider the suspension or termination of your lease and right to occupy the premises.

Very truly yours,

FILINVEST LAND, INC.

MICHAEL ANGELO A. DUMLAO
First Vice President &
Business Retail Head

CONFORME:

MARY GRACE FOODS INC.

ADRIAN P. DIMACALI
Director

Date: 13 MAR. '25

ANMA

cc: Billing/Collection/Leasing/Lease Admin/T-file